Thomas A.R vs The Palakkad Municipality on 6 February, 2026

IN THE HIGH COURT OF KERALA AT ERNAKULAM
PRESENT
THE HONOURABLE MR. JUSTICE HARISANKAR V. MENON
FRIDAY, THE 6TH DAY OF FEBRUARY 2026 / 17TH MAGHA, 1947
WP(C) NO. 8327 OF 2023

PETITIONER:

THOMAS A.R,
AGED 54 YEARS
S/O. LATE RAPPAYI, ALAPATT HOUSE, EDAYAR STREET,
MANKAVU, PALAKKAD NO.III VILLAGE,
PALAKKAD TALUK & PALAKKAD DISTRICT, PIN - 678001

BY ADVS.
SHRI.JACOB SEBASTIAN
SHRI.WINSTON K.V
SMT.ANU JACOB
SMT.DIVYA R. NAIR

RESPONDENTS:

1 THE PALAKKAD MUNICIPALITY,
REPRESENTED BY ITS SECRETARY, MUNICIPAL OFFICE,
PALAKKAD DISTRICT, PIN - 678001

2 THE SECRETARY,
PALAKKAD MUNICIPALITY, MUNICIPAL OFFICE,
PALAKKAD DISTRICT, PIN - 678001

3 M.R SREEJITH,
AGED 55 YEARS
S/O. RAMAGUPTHAN, SREENILAYAM, PERIMBADARI DESOM,
MANNARKKAD NO.1 VILLAGE, MANNARKKAD TALUK &
PALAKKAD DISTRICT, PIN - 678582

BY ADVS.
SRI.K.MOHANAKANNAN
SMT.A.R.PRAVITHA

THIS WRIT PETITION (CIVIL) HAVING COME UP FOR ADMISSION ON 06.02.2026, THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

WP(C) NO. 8327 OF 2023

JUDGMENT

The petitioner, on the basis of an agreement entered into with the 3rd respondent herein, constructed a semi-permanent structure, which has been used as a 'Kanjikkada'. The petitioner has filed the captioned writ petition pointing out that he had a licence for running the aforesaid shop, as evidenced by Ext.P3 issued by the 1st respondent Municipality, and though he sought for renewing the licence, the Municipality has not renewed the same, relying on the alleged unauthorised construction, as stated in Exts.P7 and P8.

2. I have heard Sri. Jacob Sebastian, the learned counsel for the petitioner; Sri. Binoy Vasudevan, the learned Standing Counsel for the Municipality; and Sri. Mohanakannan, the learned counsel for the 3rd respondent.

3. The learned counsel for the 3rd respondent submits that, as of now, he is not the owner of the property, insofar as he has sold the same.

4. Taking note of the submissions made across the Bar, this Court notices that the petitioner was running the shop on the basis of a licence issued, as evidenced by Ext.P3. This Court further notices that the petitioner had sought renewal of the WP(C) NO. 8327 OF 2023 2026:KER:11164 licence, as evidenced by Ext.P7. Sri. Jacob Sebastian would submit that for the subsequent years also the petitioner had sought renewal of the licence, however, the Municipality has not issued any positive orders in this regard.

5. In my opinion, merely on the allegation of unauthorised construction, a licence once issued cannot be refused renewal. Insofar as the petitioner has already applied for renewal of the licence, this writ petition would stand disposed of directing the 1st respondent to renew the same, if the application is otherwise in order. Ext.P7, to the extent it refuses to consider the application of renewal, stands quashed.

6. The petitioner shall also furnish a fresh application for renewal of licence for the current year and, upon furnishing the said application, the 1st respondent Municipality shall consider the same and pass orders in tune with the directions contained above.

7. As regards the allegation contained in Ext.P7 with respect to the unauthorised construction, it is for the petitioner to seek regularisation, in accordance with law. If the Municipality proposes to issue any notice with respect to the unauthorised construction, the same shall be issued in the name of the petitioner herein.

WP(C) NO. 8327 OF 2023 2026:KER:11164 So as to enable the petitioner to seek renewal of the licence as above, the proceedings under Ext.P8 shall remain stayed for a period of eight weeks.

Sd/-

HARISANKAR V. MENON JUDGE GBG WP(C) NO. 8327 OF 2023 2026:KER:11164 APPENDIX OF WP(C) NO. 8327 OF 2023 PETITIONER EXHIBITS Exhibit-P1 THE TRUE COPY OF THE AGREEMENT DATED 10.12.2019 BETWEEN THE PETITIONER AND THE 3RD RESPONDENT Exhibit-P2 THE TRUE COPY OF THE PROPERTY TAX PAID RECEIPT ISSUED BY THE FIRST RESPONDENT MUNICIPALITY DATED 13.5.2020 Exhibit-P3 THE TRUE COPY OF THE LICENSE DATED 29.05.2022 ISSUED BY THE FIRST RESPONDENT IN THE NAME OF THE PETITIONER FOR THE YEAR 2022-23 Exhibit-P4 THE TRUE COPY OF THE REGISTRATION CERTIFICATE DATED 24.08.2020 ISSUED IN THE NAME OF THE PETITIONER BY THE COMMISSIONER OF FOOD SAFETY Exhibit-P5 THE TRUE PHOTOGRAPHS OF THE FOOD VENDING OUTLET (KANJIKKADA) Exhibit-P6 THE TRUE COPY OF THE ABOVE ORDER DATED 25.08.2022 Exhibit-P7 THE TRUE COPY OF THE COMMUNICATION DATED 15 FEBRUARY 2023 ISSUED BY THE FIRST RESPONDENT Exhibit-P8 THE TRUE COPY OF THE COMMUNICATION DATED 05.01.2023 OF THE 2ND RESPONDENT TO THE HEALTH SUPERVISOR